

1604
Oct. 29

Recusants to
pay 20*l.* a
month or go
to prison

religion or Conscience, but for treason to the person of the prince or state, or wthdrawinge or seducinge the people from there obedience; & after Pope Pius' absolution by bull, & therevpon a generall relapse from Church, a pecuniarie punishment of 20^{li} by monethe & imprisonmente yf they had not [wherewith] to paie;¹ as this man Pounce was manie yeares imprisoned, & now aged, & it seemed now decayed in his senses, for he shewed manie apperaunces of good partes, w^{ch} either yeares or troubles had now greatlye defaced in him; so that he talked muche idle talke, & impertinente, & to no purpose; yet Confessinge verie discretelye he was to rashe & had offended in ouer forward blinde zealle, but yet wth extrauagante idle wordes he spoyle all againe, & was helde shorte by y^e Courte; he was of ouer bolde a spirite, & full of matter, & verie plentiful in vttering the same. M^r Attornie tolde him the papistes woulde gyue him litle thankes for that daie's service, for it seemed he looked to be canonized for it; but saithe the Attornie, "god be thanked, the gospell this daye is muche more aduanced, & error & poperie abased, & the glorie of god extolled."

[p. 168]
Sentence

' So for theise offences he was Fyned 1000^{li},² imprisonmente duringe y^e kinge's pleasure in y^e tower, & to stande one the pillorie here at Westminster, & in Lancashire, & to haue his eares nailed, but not cutte of; yet if he woulde produce those that informed him he shoulde not haue his eares naylled, albeit those y^e beganne the sentence woulde haue had his eares Cutte of, but the sentence of y^e Courte was otherwyse: in the begynninge of his replie to his Charge, w^{ch}, as the Attornie sayde, did Caste itselfe into a tryangle, firste in three offenders, Baillie, Rauson & Atkinson; for Baillie, he was no papiste, but a protestante, & he Comminge wth 80 more to rescue a notorious preiste sendinge to the prison, he onelye was taken, & iustelye Condemned for treason, & yet executed but as a Felon³: Rauson, for receyuinge & harboringe a preiste whome had sayde he

Baillie's
case

Rauson's
case.

¹ The statute was 23 Eliz. cap. 1.

² See Appendix VII.

³ That is, he was hanged, not beheaded.